CORY LEA SHEPHERD
15 Edmond Street, Coomera QLD 4209 | coryshepherd1@hotmail.com

Ms Renee Matheson
Senior Appeals Officer, Workers' Compensation Regulator
150 Mary Street, Brisbane QLD 4000
By email: Renee.Matheson@oir.qld.gov.au

Dated 22 October 2026

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator
Matters that may be agreed before the section 552A conference

Dear Ms Matheson,

Thank you for the Regulator's emails of 12 and 16 October 2026 confirming the veracity of the documents at Tabs 1, 5, 17 to 19, 21 to 23 and 31 of Annexure A and of the role description at Tab 32A, and for your email of 19 October 2026 with counsel's availability for the conference.

With those confirmations, 38 of the 39 documents at Annexure A to the notices to admit served on 28 August 2026 are admitted or confirmed. Only Tab 24 is outstanding. Part 1 of the Schedule of 1 October 2026, updated to today's date, is attached.

So that the conference can be used efficiently, and without delaying it, could the Regulator please indicate its position on the following matters by 4.00 pm on Friday 30 October 2026? Any that are agreed can then simply be noted at the conference.

1. Facts 228 to 231. These facts record entries in the Emergency Code Register and were not admitted on 8 September 2026. Each reproduces entries in the native file "2024 Emergency Code Register_16 to 20 March 2024.xlsx" that the Regulator provided on 12 October 2026 and whose veracity it confirmed. The attached table identifies the entries by row. Does the Regulator now admit facts 228 to 231?

2. Tender. Does the Regulator agree that the 38 admitted or confirmed documents at Annexure A, and the document at Tab 32A, may be tendered at any hearing without further proof?

3. Relevance and admissibility. The Regulator's letter of 8 September 2026 and its email of 16 October 2026 reserve the right to object to the relevance or admissibility of any fact or document at the hearing. So that any such objection can be identified at the conference rather than at the hearing, could the Regulator please identify any admitted fact, or any document at Annexure A or Tab 32A, whose relevance or admissibility it intends to dispute, and the ground? Most of those documents were disclosed by the Respondent itself or produced by Metro South Health.

For clarity, the Appellant relies on the admitted documents as evidence that they exist, of their terms and dates, and of what the Respondent's statement of facts and contentions and List of Documents do and do not contain. He does not contend that the admission of a document is an admission of the truth of any statement in it, or that any admission decides whether any conduct was reasonable. Those are matters for the Commission.

4. Section 32(1). Review Decision 69983 found that the Appellant sustained a personal injury of a psychological nature and that his employment was a significant contributing factor to it (facts 261 and 262), and the claim was rejected under section 32(5) of the Act. Does the Regulator agree that the elements of section 32(1) are not in issue, so that the issue for any hearing is confined to section 32(5)?

5. Leave. Does the Regulator consent to leave to file the proposed Second Amended Statement of Facts and Contentions provided on 1 October 2026? If it intends to amend its own statement in response, how much time does it seek? I intend to provide, before the conference, a corrected version of the proposed statement with a one-page list of the changes. The corrections add no new stressor or allegation.

6. Paragraph 27. At the conference I will ask which management action the Regulator relies on for the contention in paragraph 27 of its amended statement of facts and contentions, so that the issues for any hearing can be identified.

To the extent these matters are not agreed, I will ask the Commission at the conference to deal with them and, if necessary, to make directions or to list the matter for mention.

Yours faithfully,

Cory Lea Shepherd
Appellant, self-represented

WC/2024/227 – Schedule, Part 1, updated to 22 October 2026: the 39 documents at Annexure A (notices to admit served 28 August 2026) and their status

On 8 September 2026 the Respondent admitted the authenticity of 25 of the 39 documents and disputed 14. It confirmed four of the 14 on 24 September 2026, nine on 12 October 2026 from the copies provided by Metro South Health, and the additional document at Tab 32A on 16 October 2026. Tab 24 has not yet been addressed. Of the 303 facts in the notice to admit facts, 298 were admitted on 8 September 2026; the five not admitted are fact 154, which is not relied upon in the proposed Second Amended Statement of Facts and Contentions, and facts 228 to 231.

Tab	Document	Date	8 Sep 2026	Since 8 Sep 2026	Position now
1A	Stibbard to the Switchboard team, "Hello & Update"	18 Jul 2023, 12:56 pm	Admitted	-	Admitted; tender
1B	Taylor to Reese, "Fwd: Communication Book Update", with her email to Logan Switch of 9:57 am that day	6 Jun 2023, 4:05 pm	Admitted	-	Admitted; tender
2	"Increase of hours and Workplace issues" chain and Reese's replies	7-10 Aug 2023	Admitted	-	Admitted; tender
3	Reese attaching HR Policy E12; emails of 4 and 8 Sep 2023	29 Aug-8 Sep 2023	Admitted	-	Admitted; tender
4	"Request to Increase Working Hours to Full Time Rotational Roster"; emails of 7 Aug 2023, 1:43 pm and 5:11 pm	7 and 31 Aug 2023	Admitted	-	Admitted; tender
7	"Roster Concerns" chain	26 Apr-8 May 2024	Admitted	-	Admitted; tender
8	Reese to Pritchard, "FW: Roster Concerns"; Reese to LBH_HR attaching qh-gdl-401-3.3	10 and 20 May 2024	Admitted	-	Admitted; tender
8A	Cover page, Fatigue risk management systems implementation guideline QH-GDL-401-3.3:2021	2021	Admitted	-	Admitted; tender
8B	MASPER emails (Taylor to Kwok and Wong; "MASPER process") and issue logs	9 May 2024 (logs 2-8 May)	Admitted	-	Admitted; tender
8C	Stibbard, "Switchboard After Hours On Call Manager PP24"	13 May 2024, 4:29 pm	Admitted	-	Admitted; tender
9	Taylor, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	Admitted	-	Admitted; tender
9A	"Office Hours and Departmental Directives" chain (1:15 pm, 6:23 pm, 7:09 pm)	15 May 2024	Admitted	-	Admitted; tender
9B	Reese, "RE: Office Hours and Departmental Directives"	21 May 2024, 2:53 pm	Admitted	-	Admitted; tender
10	Taylor, "Sick leave 14.05.24", and its forwarding to Reese	14-15 May 2024	Admitted	-	Admitted; tender
11	Marriott (Integrated Respiratory Service) to Logan Switch; the Appellant to Taylor; Taylor's reply	15 and 20 May 2024	Admitted	-	Admitted; tender
12	"Corey Shepherd 388372 Pay issues" thread	3-13 May 2024	Admitted	-	Admitted; tender
13	Same thread, Taylor to the Appellant	21 May 2024, 12:33 pm	Admitted	-	Admitted; tender
14	Taylor, "Validation of Claims older than 3 months - Please sign"	28 May 2024, 8:36 am	Admitted	-	Admitted; tender
15	myHR submissions report (MSH Item 11)	1 Feb-31 May 2024	Admitted	-	Admitted; tender
16	QH Leave Takings Report (MSH Item 15)	19 Mar 2024	Admitted	-	Admitted; tender
25	Review Decision 69983	24 Oct 2024	Admitted	-	Admitted; tender
26	Appellant's first notice to admit facts	before 18 Feb 2026	Admitted	-	Admitted; tender
27	Respondent's response to that notice	18 Feb 2026	Admitted	-	Admitted; tender
28	myHR leave request history, Process Reference 15480560 (MSH Item 11)	20 Feb-1 Mar 2024	Admitted	-	Admitted; tender

Tab	Document	Date	8 Sep 2026	Since 8 Sep 2026	Position now
29	Instrument of Human Resource Sub-Delegation, Paid Special Pandemic Leave (MSH Item 13)	eff. 5 Dec 2022	Admitted	-	Admitted; tender
6	Taylor, "Afterhours Oncall Process - Switchboard"	15 Apr 2024, 12:39 pm	Disputed	Confirmed 24 Sep 2026	Admitted; tender
20	Metro South Health to Commissioner Dwyer, K-LM26/729, signed by the Chief Executive	5 Jun 2026	Disputed	Confirmed 24 Sep 2026	Admitted; tender
30	Taylor, "What's Chloe's Hours?!"	23 Aug 2023, 2:18 pm	Disputed	Confirmed 24 Sep 2026	Admitted; tender
30A	Taylor, "Good morning Team."	18 Jun 2024, 8:58 am	Disputed	Confirmed 24 Sep 2026	Admitted; tender
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
5	Taylor, "Approved - Permanent Full Time FTE"	27 Sep 2023, 1:52 pm	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
17	Movement form, approved by Mr Hughes as delegate, recording "Continuous Shift Worker"	27 Feb 2026	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
18	Movement form, approved by Mr Hughes, recording "Continuous Shift Worker"	17 Apr 2026	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
19	Movement form, approved by Mr Hughes, recording "Continuous Shift Worker"	9 Jun 2026	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
21	Forrest, Senior Consultant Human Resources, to the Appellant	7 Jul 2026	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
22	Consultation Paper, Proposed Rosters for Switchboard Services, signed by Mr Hughes 12 Nov 2024	Nov 2024	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
23	Consultation outcome, Proposed Rosters, signed by Mr Hughes 12 Dec 2024	Dec 2024	Disputed	Confirmed 12 Oct 2026 (MSH copy)	Admitted; tender
31	"2024 Emergency Code Register", March 2024 sheet, entries 16-20 Mar 2024	Mar 2024	Disputed	Confirmed 12 Oct 2026 (native file)	Copy confirmed; facts 228-231 not yet admitted (see the table below)
24	Moran, Organiser, Together Queensland, to Jeffrey, Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 Nov 2025	Disputed	Not yet addressed	Outstanding; contents admitted (facts 178-179)

Additional document

Tab	Document	Date	Status
32A	Role Description, Manager Switchboard Services, Logan Hospital (AO4), RD 30478699, as enclosed by Metro South Health with its letter of 5 June 2026 (Item 6)	as at 2021	Confirmed 16 Oct 2026; tender
32B	Instrument of Human Resource Sub-Delegation, COVID-19 Paid Special Pandemic Leave (Item 13); the same document as Tab 29	23 Nov 2022	Admitted (as Tab 29)

Facts 228 to 231 and the native file provided by the Regulator on 12 October 2026

Fact	What the fact records	Rows of sheet "MARCH 2024" in the native file provided on 12 October 2026
228	17 March 2024: eight entries, including "MET CALL WARD 2H BED 7" at 19:16, "CODE BLUE WARD 2H BED 7" at 19:20 and "MET CALL WARD 2Q BED 5" at 21:16	Rows 9 to 16 (03:57, 05:19, 07:48, 13:48, 14:13, 19:16, 19:20, 21:16)
229	18 March 2024: "CODE GREY QAS TRIAGE AIRLOCK" at 8:48; "MET CALL WARD 6A BED 8" at 9:20; "MET CALL WARD 3DR BED 14" at 11:31; "CANCELLED MET CALL WARD 3DR BED 14" at 11:32; "NEONATAL MET CALL THEATRE 2" at 11:35; "NEONATAL MET CALL BIRTH SUITES 5" at 13:09	Rows 17 to 22
230	Six of the entries for 18 March 2024 bear times between 6:00 and 14:00	Rows 17 to 22; the next entry, row 23, is at 14:38
231	19 March 2024, 11:34: "MET CALL WARD 2I BED 20" with the notation "CALLED VIA SWITRCHBOARD" [sic]	Row 33 (the notation is in column E, "EXTRA INFORMATION")